

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X **SUMMONS**

JAIME LOPEZ,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

- against -

POLICE DETECTIVE JOVANIEL CARDOVA, JOHN
DOE 1-3 (POLICE OFFICERS AS YET UNIDENTIFIED)
Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Kings County and is against
the City of New York

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
December 23, 2019

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

DETECTIVE JOVANIEL CARDOVA
One Police Plaza
New York, NY 10007

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
JAIME LOPEZ,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINTPOLICE DETECTIVE JOVANIEL CARDOVA, JOHN DOE
1-3 (POLICE OFFICERS AS YET UNIDENTIFIED),
Defendants,
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Plaintiff, JAIME LOPEZ, by his attorneys LORD & SCHEWEL PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff JAIME LOPEZ brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. That at all times hereinafter mentioned, the DEFENDANT THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.

3. That at all times hereinafter mentioned, the DEFENDANTS CARDOVA and JOHN DOES 1-3 were employees of the New York City Police Department, acting in their capacity as a police officers, and under color of law.

4. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.

9. That all conditions and requirements precedent to the commencement of this action have been complied with.

10. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiff a non-delegable duty of care.

11. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

12. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

13. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

14. On or about March 29, 2018 PLAINTIFF JAIME LOPEZ was visiting his girlfriend, Sefora Arguello.

15. Four Officers were at the door, including DEFENDANT CARDOVA and JOHN DOES 1-3. The Officers told Ms. Arguello that they needed to come into the apartment.

16. Ms. Arguello refused to let them into the apartment. Ignoring her request, they forced their entry into the apartment.

17. DEFENDANT CARDOVA pushed the door open, saw Jaime Lopez walking out of the bathroom, grabbed him threw him to the floor and started punching him.

18. This assault took place in front of Ms. Arguello's eight-year-old son and disabled father.

19. As a result of this assault, Plaintiff went to the hospital and received medical attention.

20. After this assault, Defendant Cardova falsely informed the Kings County District Attorney's Office ("KCDA") that Plaintiff threw a punch at defendant, as well as threatened him.

21. Plaintiff was charged with Assault in the Second Degree, a Class D Felony. Defendant Cardova testified about this assault in front of the Grand Jury, yet the Grand Jury did not find his testimony credible and returned a No True Bill.

22. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

23. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW

YORK, its agents, servants and/or employees.

24. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
EXCESSIVE FORCE**

25. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

26. In detaining Plaintiff, DEFENDANTS used force.

27. The force used was unreasonable and excessive.

28. As a result of the unreasonable and excessive force, Plaintiff suffered injuries and substantial pain requiring medical attention.

29. DEFENDANTS' use of force was a substantial factor in causing the harm to Plaintiff.

30. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

**SECOND CAUSE OF ACTION:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

31. Plaintiff repeats and realleges each and every allegation as if fully set forth herein and he further alleges as follows.

32. Those defendants that were present but did not actively participate in the

aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

33. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged

**THIRD CAUSE OF ACTION:
NEGLIGENT HIRING AND RETENTION**

34. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

35. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

36. The misconduct by DEFENDANT CARDOVA described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

37. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**FOURTH CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

38. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

39. The DEFENDANT, THE CITY OF NEW YORK, including but not limited to DETECTIVE CARDOVA and JOHN DOES #1-3, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.

40. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.

41. That as a result of said intentional and negligent acts, the Plaintiff received serious injuries in diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

42. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**FIFTH CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE
PROCESS OF LAW UNDER 42 U.S.C 1983**

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

44. That DEFENDANT CARDOVA falsely informed the Kings County District Attorney's Office ("KCDA") that Plaintiff assaulted and threatened him.

45. Then, defendant testified to these same false statements under oath in front of the Grand Jury, which disregarded his fabricated testimony.

46. That the aforementioned statements by the DEFENDANT, and actions by the DEFENDANT, consisted of fabricated and falsified information was utilized and relied upon by the Kings County District Attorney's Office.

47. Furthermore, DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

48. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

49. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

50. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
December 23, 2019

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
JAIME LOPEZ
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for Plaintiff JAIME LOPEZ. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
December 23, 2019



MASAI I. LORD
Counsel for Plaintiff